

APPROVED

By John Brodie at 9:41 am, Nov 07, 2022

City of Cheyenne
CITY CONTRACT NO. _____

2022 - 2023

COLLECTIVE LABOR AGREEMENT

BETWEEN

CITY OF CHEYENNE, WYOMING

2101 O'Neil Avenue
Cheyenne, Wyoming 82001

AND

**CHEYENNE FIREFIGHTERS
LOCAL UNION NO. 279
INTERNATIONAL ASSOCIATION OF FIREFIGHTERS**

P.O. Box 674
Cheyenne, Wyoming 82003-0674



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SECTION 1. PARTIES

The parties to this Agreement are the City of Cheyenne, Wyoming, a municipal corporation, hereinafter referred to as the “City,” and the Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters, hereinafter referred to as the “Union.”

SECTION 2. DEFINITIONS

Acceptable Fire-Training Academy:

A professionally certified school whose program is the equivalent of the academy provided by the Front Range Fire Consortium.

Bargaining Agent:

Local Union No. 279 is the agent representing the firefighters for the City of Cheyenne, Wyoming, and shall be recognized as the sole and exclusive bargaining agent and shall have the scope of authority to bargain for rates of pay, hours of work, and other working conditions.

Base Pay:

The agreed rate of pay for a firefighter based on his or her rank and step as specified in Section 21 excluding overtime pay, longevity pay, holiday pay, education pay, and specialty pay.

Cadre/Training Instructor:

The Cadre/Training Instructor position will be utilized to fulfill Cheyenne Fire and Rescue's obligation to the Front Range Fire Consortium, its need for qualified instructors and to offset associated costs with participation. It may also be used to meet the training needs of the Department outside of academy opportunities. Assignments made to this position shall not exceed twelve months in duration. If a Member is retained for time periods outside of an active academy, the Member shall be utilized to meet the training demands of Cheyenne Fire Rescue. An assignment made to fill this position shall not violate Section 15.

Civil Service Commission:

The City of Cheyenne Fire Department Civil Service Commission.

Command Officers:

The Fire Chief, Division Chiefs, and Battalion Chiefs.

Company Officers:

Lieutenants.

Day Personnel:

A Member who works an eight or ten-hour tour of duty.

Days:

For any period of time specified in this Agreement, days shall be computed in accordance with the Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Department:

The Cheyenne Fire Rescue Department.

Eligibility List:

A list established by the City of Cheyenne Fire Department Civil Service Commission pursuant to its Rules and Regulations.

E.M.S.:

Shall mean Emergency Medical Services.

E.O.D.:

Shall mean earned off-duty time or compensatory time off.

Extraordinary Circumstances:

An event or condition which could not reasonably be anticipated or expected to occur and is beyond the usual, customary, or regular duties of firefighters.

Fire Chief:

The Chief of the Cheyenne Fire Rescue Department.

Grievance:

The procedure for the resolution of disputes arising under this Agreement as specified in Section 8.

Immediate Family:

Spouse	Grandmother
Daughter	Grandfather
Son	Grandchildren
Mother	Mother-in-Law
Father	Father-in-Law
Sister	Sister-in-Law
Brother	Brother-in-Law
Step-Mother	Daughter-in-Law
Step-Father	Son-in-Law
Step-Children	

Incident Commander:

The highest ranking Officer who initially responds to any call for service or who has accepted transfer of command.

Members:

All regularly sworn employees of the Cheyenne Fire Rescue Department, as covered by the Collective Labor Agreement (excluding the Fire Chief).

Officer in Charge:

Any Officer in a Member's chain of command.

On-Call:

Members may be required to be available twenty-four hours per day for seven consecutive days in a month to report to work for the performance of work relating to the duties and

responsibilities of the Prevention Division.

Platoon Personnel:

A Member who works a twenty-four-hour tour of duty.

Rank:

Any of the ranks specified in the Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Rules and Regulations:

The Rules and Regulations of the City of Cheyenne Fire Department Civil Service Commission.

Seniority:

The time of consecutive service a Member has accumulated from the date of the Member's employment and shall not be interpreted as time in grade or rank.

“Shall” and “May”:

“Shall” is mandatory; “May” is permissive.

Shift:

The number of hours worked in a tour of duty by:

A. Day Personnel - Personnel assigned to work a forty-hour week (Monday through Friday).

B. Platoon Personnel - Personnel assigned to work twenty-four-hour shifts.

Shift Trainers

Personnel who have been assigned to assist Fire Training or EMS.

Specialty Team

Cheyenne Fire Rescue personnel assigned to the Hazardous Materials and Specialized Rescue

Teams.

Temporary Assignment:

An assignment to a position and rank for a period of no more than twelve months to meet the needs of the Department. The Department shall not assign more than one Member at any given time.

Vacancy:

A vacancy is any open position resulting from resignation, termination, retirement, death, promotion, or voluntary or involuntary demotion.

SECTION 3. EXCLUSIVE BARGAINING AGENT

The paid Members of the Cheyenne Fire Rescue Department, the regularly constituted Fire Department of the City of Cheyenne, Wyoming, by a majority vote, have selected the I.A.F.F. Local Union No. 279 as the sole and exclusive bargaining agent for all of the Members of the Department, except the Fire Chief.

The Union and the City's obligation to negotiate is subject to Wyo. Stat. §§ 27-10-101 through 27-10-109.

The City shall not enter into any other agreement with Members serving as firefighters, individually or collectively, or with any other organization, which in any way conflicts with the provisions of this Collective Labor Agreement.

SECTION 4. TERM OF AGREEMENT

This Agreement shall become effective 12:00 a.m., January 7, 2023, and remain in effect until 11:59 p.m., June 30, 2023.

SECTION 5. SEPARABILITY

If any clause, sentence, paragraph, or part of this Agreement, or the application thereof to any person or circumstance, shall for any reason be adjudged by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair, or invalidate the remainder of the Agreement.

SECTION 6. EMBODIMENT OF AGREEMENT

This Collective Labor Agreement constitutes the sole and complete agreement between the parties and embodies all the terms and conditions governing the wages, rates of pay, and working conditions of the Members represented by the Union. All costs associated with the arbitration shall be shared equally by the City and the Union. The parties acknowledge they have had the opportunity to present and discuss any subject germane to collective bargaining. Any prior commitment or agreement between the City and the Union or any individual Member covered by this Agreement that has been negotiated by the Union is hereby superseded.

SECTION 7. RE-NEGOTIATIONS

At any time prior to the expiration date of this Agreement, any provision herein may be re-negotiated by mutual agreement of the City and the Union. No part of this Agreement shall be opened until mutual agreement is reduced in writing and signed by both parties, consisting of the bargaining committee for the Union and the Governing Body of the City. Only the issue(s) in question shall be re-negotiated, and not the entire Agreement.

SECTION 8. GRIEVANCE PROCEDURES

A grievance is defined as a dispute or difference of opinion between the City and a Member, Members, or the Union over the meaning, interpretation, application, or the inequitable application of an expressed provision of the Agreement. Any Member may file a grievance under this Agreement protesting the exercise of Management Rights, but to prevail, the Member must establish a violation by the City of the specific terms of this Agreement. Any grievance filed against the City shall be in writing and if a Member's grievance, it shall contain the name and position of the affected Member(s). The grievance shall contain a clear and concise statement of the grievance, the issue or issues involved, the relief sought, the date the incident or violation took place, and the specific section or sections alleged to have been violated.

For a grievance to be considered timely, the Union's Grievance Committee must submit it in writing within ten business days of the date the grievant knew of the event giving rise to the dispute, following the steps below:

Step 1

The Union's Grievance Committee may submit the grievance in writing to the respective Division Chief who will then schedule a meeting with the grievant and two members of the Union's Grievance Committee within ten business days to discuss the grievance and attempt to resolve the grievance. A written decision from the Division Chief shall be delivered to the grievant, Union, and Fire Chief within five business days of the meeting. If the decision fails to satisfy the grievant and/or Union, either may initiate Step 2 of the grievance process.

Step 2

A grievant and/or Union's Grievance Committee who does not agree with the Step 1 response and still feels that they have been grieved, may initiate Step 2 and forward the original grievance and written responses from Step 1 to the Fire Chief within ten business days of receipt of the written decision from Step 1.

Upon receipt, the Fire Chief shall have five business days to schedule and meet with grievant and/or Union's Grievance Committee to hear the grievance and associated facts to seek a resolution. If a resolution is reached, the decision shall be reduced to writing and signed by all parties within ten business days. If a resolution cannot be reached, the Fire Chief shall deliver a decision to the parties involved and Mayor within ten business days. If the decision fails to satisfy the grievant and/or Union's Grievance Committee, either may initiate Step 3 of the process.

It is understood that nothing shall preclude the Grievance Committee from electing to skip Step 1 and begin with presenting a grievance to the Fire Chief if it is deemed that such action is warranted by the nature or circumstances of the grievance.

Step 3

A grievant and/or Union's Grievance Committee who does not agree to the Step 2 response and still feels they have been grieved, may initiate Step 3 and forward all original grievance and responses to the Mayor within ten business days of receipt of the Fire Chief's decision. The Mayor and Fire Chief shall meet with all parties involved within ten business days of receipt of the Step 3 notification.

In attendance at the meeting shall be the Mayor or his or her designee, the aggrieved party, the Union's Grievance Committee, and at the Union's option, its legal counsel. If the

grievance is settled as a result of such meeting, the settlement shall be reduced to writing and signed by the parties within five days following the meeting. If no settlement is reached, the Mayor or his or her designee shall give a written answer to the grievance within five business days following the meeting. The grievance may then be submitted to arbitration by the Union.

Arbitration

Within five business days from the receipt of the Mayor or his or her designee's written answer referred to above, the City and the Union shall request in writing that the American Arbitration Association shall submit a list of five arbitrators. Within five business days after receipt of said list, one impartial arbitrator shall be selected. A coin flip shall determine which side will be first in striking a name from the list. The name last remaining shall be the appointed impartial arbitrator.

Arbitration shall proceed pursuant to the provisions of the Uniform Arbitration Act. (Wyo. Stat. §§ 1-36-101 through 1-36-119). The selected arbitrator shall have no right to amend, modify, alter, add to, or subtract from the provisions of the Agreement. The arbitrator shall only consider and make a decision with respect to the specific issue or issues submitted and shall have no authority to make a decision on any other issue not so submitted to the arbitrator. In the event the arbitrator finds a violation of the terms of the Agreement, the arbitrator shall fashion an appropriate remedy. Any dispute, claim, or grievance arising from or relating to interpretation or application of this Agreement shall be submitted to arbitration administered by the American Arbitration Association under its Labor Arbitration Rules, unless the parties otherwise have agreed in this Section. The parties further agree to accept the arbitrator's award as final and binding on them, subject to the right of either party to seek judicial review pursuant to Wyo. Stat.

§§ 1-36-101, *et seq.* The parties shall each pay half the costs and expenses of the impartial arbitrator. Should the same issue be submitted to arbitration two or more times during the term of this Agreement and the same party loses two or more times on that issue, the losing party shall pay all costs and expenses of the second or any subsequent impartial arbitration.

SECTION 9. NON-DISCRIMINATION

Neither the City nor the Union shall discriminate against a Member of the Department by any means whatsoever because of race, sex, sexual orientation, gender identity, creed, color, national origin, or Union affiliation with I.A.F.F. Local Union No. 279. The City and the Union shall comply with the requirements of Title VII of the Civil Rights Act of 1964, as amended, the Fair Employment Practices Act of 1965, as amended (Wyo. Stat. §§ 27-9-101, *et seq.*), and other applicable state and federal laws.

SECTION 10. ANNEXATIONS

The City and the Union agree that should the City annex any new areas the Department will provide first response to all calls in all annexed areas with the exception of the F. E. Warren Air Force Base.

SECTION 11. VOLUNTARY DEMOTION

Any Member who voluntarily requests a demotion from the Member's current rank shall be demoted to the rank held immediately prior to the Member's promotion. The Member shall make the request in writing at least thirty days prior to the effective date of the requested demotion. The request shall be subject to approval by the Fire Chief. The Fire Chief may not, prior to the expiration of the thirty-day period, appoint another Member to the position from which the Member wishes to be demoted. Upon the effective date, the Member shall return to their previous rank and grade.

SECTION 12. UNION REPRESENTATION

In the event any Member of the Department appears before the Fire Chief, the Mayor or his or her designee, for work-related disciplinary action, that Member shall have the option of having one elected Union representative present. The person or persons being disciplined shall only be called in while on duty. The elected Union representative shall be granted time off without loss of wages.

For the purpose of this Section, the term “work-related disciplinary action” includes, but is not limited to, verbal or written reprimands, demotion, suspension, or termination actions that become part of the Member’s personnel file.

SECTION 13. MANAGEMENT RIGHTS

Except as otherwise provided in this Agreement, the City shall have the right to direct and manage the operations of the Department and its employees, and to maintain the efficiency of the Department including:

1. The determination of Cheyenne Fire Rescue Department policy, including the right to manage the affairs of the Department.
2. The right to establish and modify the amount of apparatus in the main or reserve fleet.
3. The right to direct the members of the Department, including the right to hire, promote, discipline, or transfer Members to another shift.
4. The collaboration for the safety, health, and property-protection measurers provided by the Department for the citizens of Cheyenne.
5. The selection and promotion of employees established by the Civil Service Commission in its rules and regulations.
6. The determination of policy training of employees.
7. The establishment, modification, and enforcement of Department rules, regulations, and orders.
8. The determination of the amount of supervision necessary.
9. The transfer of employees from one station to the other.
10. The establishment and determination of specialized emergency response teams to include roles, responsibilities, and training requirements.
11. The right to establish job descriptions for each duty position within the

department as identified in Section 21, Classification of Employment and Basic Wages.

It is agreed that no conduct or action of the City or Union hereunder shall breach the provisions of the Agreement, the Civil Service Rules and Regulations in effect on July 1, 2021, and the laws of the State of Wyoming governing Firefighters, and the discretionary power invested in the City and the Fire Chief shall not be exercised in an arbitrary or capricious manner.

SECTION 14. STRIKES

During the term of this Agreement, there shall be no strike, slowdown, suspension, or work stoppage by the Members of the Department, nor shall there be any lock-out or work interference by the City.

SECTION 15. DEPARTMENT STAFFING

The Department shall maintain a minimum staffing level of ninety-one firefighters, including the Fire Chief, with twenty-seven firefighters assigned to each shift. When Department staffing falls below the minimum level of firefighters, it shall be brought back to the minimum level as follows:

The Fire Chief shall utilize the current Civil Service Commission eligibility list to begin the replacement process for the available openings. The Fire Chief may elect to:

1. Hire person(s) who have two or more years of documented paid professional firefighting experience, with initial training equal to or higher than the Front Range Fire Academy to the level of Firefighter 1 and Firefighter 2. Additionally, the potential new hire must submit all continuing education completed by them as documented by their current training division for review. If the potential new hire meets or exceeds the base minimum training as compared to Department standards, the Chief may elect to hire the person(s) and have them begin an orientation program and upon completion report to shift work; or

2. Hire personnel and send them through the Front Range Fire Academy or equivalent program for new firefighter training to acceptable levels of Firefighter 1 and Firefighter 2 certification.

To accommodate fire-training academy schedules, the Department may delay hiring new Members until seven days prior to the start of spring and fall academies, while still recognizing the importance of minimum staffing levels.

A. If a Member separates from service within forty-five days or less of the start of a fire training academy program, the City is not required to hire a replacement to attend the immediate academy but shall have hired the replacement(s) at least seven days prior to the subsequent academy.

B. The staffing of the Operations, Prevention, and Training Divisions, including the Fire Chief, shall be at the minimum level of ninety-one at least seven days prior to the start of the spring and fall academies, and shall not fall below the minimum staffing level until another Member separates from service.

C. Each new firefighter shall satisfactorily complete an acceptable fire academy program or orientation held by either the Department or the Front Range Fire Consortium prior to entering the ranks of the Department. Upon completion of the fire academy, the new Member shall be reviewed on a regular basis as set forth in a defined probationary period, approved by the Department. During the probationary period, a Member may be terminated at any time without cause.

When shift staffing is reduced from vacancies (retirement, separation, or transfer to days), the use of E.O.D. time may be restricted to ensure proper shift minimum levels.

D. The use of E.O.D. compensatory time is restricted for Platoon Personnel when a Member is transferred to a forty-hour week duty assignment or reassigned by the Fire Chief.

Company Strength

For the safety of the Members and the citizens of Cheyenne, and the effective utilization of fire equipment, a minimum standard of three full-time, professional firefighters (one officer, one engineer, and one firefighter) shall be assigned to each pumper, without dual assignment, and a minimum of four full-time, professional firefighters (one officer, two engineers, and one firefighter) shall be assigned to each ladder company in service, without dual assignment, for a minimum staffing of twenty firefighters.

All firefighting equipment dispatched to all structural fires shall consist of a minimum of sixteen members without an aerial ladder truck and seventeen members with an aerial ladder truck. Members on the first alarm, and any alarm thereafter shall be answered at the discretion of the Incident Commander. The Incident Commander shall have full authority to request additional resources, make appropriate assignments and comply with the 2 in-2 out standard.

In a Mutual Aid request for assistance, the City need only respond with the requested equipment. The on-the-scene Officer in Charge of such equipment may, for safety reasons, request additional equipment through the Authority Having Jurisdiction Incident Commander before involving the crew at the scene.

SECTION 16. RESERVE MANPOWER

In the event of an emergency that in the judgment of the Incident Commander necessitates additional manpower, the Incident Commander may call in off-duty personnel of the Department. The Incident Commander may request mutual aid assistance when justified by the circumstances.

SECTION 17. HOURS OF WORK

The average work week for Platoon Personnel shall be fifty-six hours computed on a twenty-four-day basis. The three-shift system shall be maintained with twenty-four-hour tours of duty, and the existing schedule shall be continued, which will include scheduled work time from the hours of 0800 to 1700 with one hour off for lunch and one hour for physical fitness training.

Beginning January 7, 2023, the employer shall begin the work shifts per work period as follows: the stated work period for purposes of complying with the Fair Labor Standards Act shall be twenty-four days. Each Member shall be assigned to work shifts that total 192 hours of work per period. The assigned schedule shall be a 48/96 shift schedule, three platoon system in which employees work two consecutive twenty-four hour shifts for a total of forty-eight hours and have ninety-six consecutive hours off. The maximum number of consecutive hours worked by members shall be ninety-six hours.

Day Personnel will be primarily scheduled to work four 10-hour days (40-hour work week) as defined in the definitions. Shifts may begin at 0700 hours and may end at 1800 hours. This time may be adjusted to meet the needs of the Fire Department or the Member with the approval of the Fire Chief. The schedule may have one week day, and shall have Saturday, Sunday, and holidays off. If a holiday falls on a Member's regularly scheduled day off, the Member shall receive the day before the holiday or the next regularly scheduled work day off, as determined by the Fire Chief.

SECTION 18. TRADING SHIFTS

Members shall be permitted to trade shifts or parts of a shift if equal duties can be assumed with permission of the Battalion Chief or designee, providing there is no additional cost to the City. No Member shall be permitted to compensate another Member for a shift worked, either in money, or in any other form of remuneration.

SECTION 19. INCLEMENT WEATHER CONDITIONS

It is the responsibility of each Member of the Department to make an honest effort to report to work as scheduled. During periods of severe inclement weather, Members are classified as essential personnel.

If a Member cannot report for duty as scheduled without an unreasonable risk to his or her safety, the Member shall immediately notify an Officer in Charge at Headquarters by the hours specified in the rules and regulations to report the Member's status. The following will apply to:

Shift Personnel:

The Officer in Charge shall notify the Member who has to be relieved of duty and place that Member on holdover until properly relieved.

The affected Member shall be:

1. Granted two hours of administrative leave without penalty to report to duty. If a Member cannot arrive safely in the two hours, the Member may request from the Fire Chief or Division Chief of Operation an additional two hours of administrative leave without penalty (maximum of four hours administrative leave).
2. If the Member is still unable to safely report to duty by noon, he or she may obtain an emergency time swap for the period needed to report to duty or utilize accrued vacation or E.O.D. time in hour increments until he or she is able to report to duty.

Day Personnel:

Members who work a forty-hour work week shall be required to observe the following:

If the City remains open and a Day Personnel Member cannot safely report for duty, the affected Member will contact their appropriate supervisor to report the Member's status. The Member affected by inclement weather will be allowed to flex the needed time to safely report to duty or utilize accrued vacation or E.O.D. time on an hour for hour basis for time absent until he or she is able to safely report to duty.

If City offices are closed, or a delayed start is declared by the Mayor of the City of Cheyenne, Day Personnel will be granted time off without penalty.

In the event of a delayed start, Day Personnel will be required to report for duty at the designated time or will be allowed to flex the needed time to safely report to duty or utilize accrued vacation or E.O.D. time on an hour for hour basis for time absent until he or she is able to safely report to duty.

The Department will not charge accrued vacation or E.O.D. compensatory time for time missed in the event a Day Personnel Member is directed by the Fire Chief or his or her designee to leave work early due to inclement weather.

SECTION 20. HOLIDAYS

The following are the recognized paid holidays for this contract period:

New Year's Day

Martin Luther King, Jr., Day

President's Day

Memorial Day

Juneteenth National Independence Day

July 4th

One-half day for Cheyenne Day

Labor Day

Columbus Day (Shift Personnel only)

Veteran's Day

Thanksgiving Day

Friday after Thanksgiving Day (Day Personnel only)

Christmas Day

Department Members shall be granted a choice of either E.O.D. compensatory time off for the actual number of hours worked during the holiday or paid compensatory wages at his or her regular base rate for that shift on the holiday hours worked and shall not be deprived of and shall receive in addition to his or her regular base pay for the day.

If any of the holidays designated in this Section should fall on a Saturday, Day Personnel shall receive the Friday before off with full pay.

If any of the holidays designated in this Section should fall on Sunday, Day Personnel

shall receive the Monday that follows off with full pay.

The Department shall refrain from scheduling activities on the holidays designated herein.

SECTION 21. CLASSIFICATION OF EMPLOYMENT AND BASIC WAGES

Pension Contribution

Effective July 1, 2009, the City shall pay one and a half percent (1.5%) of each Member's contribution to the Member's Pension Fund Plan B Retirement Account, as allowed by Wyo. Stat. § 15-5-420.

Wages

Members in the various classifications shall be compensated the following hourly wages:

<u>OPERATIONS DIVISION</u>	07/01/2022
Probationary Firefighter/Suppression	\$19.7829
Firefighter/Suppression (Step 4)	\$21.4285
Firefighter/Suppression (Step 3)	\$22.2062
Firefighter/Suppression (Step 2)	\$22.9841
Firefighter/Suppression (Step 1)	\$23.7625
Engineer/Suppression (Step 2)	\$25.2059
Engineer/Suppression (Step 1)	\$25.9626
Lieutenant/Suppression (Step 2)	\$27.5519
Lieutenant/Suppression (Step 1)	\$28.3848
Battalion Chief/Suppression (Step 2)	\$31.5834
Battalion Chief/Suppression (Step 1)	\$32.5003
Battalion Chief/Day (Step 2)	\$41.3889
Battalion Chief/Day (Step 1)	\$42.6046

Lieutenant/E.M.S. Coordinator (Step 2)	\$37.9328
Lieutenant/E.M.S. Coordinator (Step 1)	\$39.0991
Division Chief/Suppression (Step 2)	\$46.5754
Division Chief/Suppression (Step 1)	\$47.9110

PREVENTION DIVISION

Lieutenant/Prevention (Step 2)	\$37.9328
Lieutenant/Prevention (Step 1)	\$39.0991
Division Chief/Prevention (Step 2)	\$46.5754
Division Chief/Prevention (Step 1)	\$47.9110

When employees are working in on-call status, they shall be compensated for such duty with ten hours of pay per week on-call at the individual's regular scheduled wage, and will be inclusive of all regularly scheduled base, education, specialty, and longevity pays. All Personnel shall be given a choice of on-call pay or E.O.D. compensatory time off at the rate of ten hours per week on-call.

TRAINING DIVISION

Lieutenant/Training (Step 2)	\$37.9328
Lieutenant/Training (Step 1)	\$39.0991

Each step is for a duration of one year.

Step requirements:

Engineer - Step 2

Passed the exam given by the Civil Service Commission and be promoted to Engineer.

Engineer - Step 1

This rate shall be paid to those Members when they act as Engineer in an overtime position.

Lieutenant - Step 2

Passed the exam given by the Civil Service Commission and be promoted to Lieutenant. This rate shall be paid to those Members when they act as a daytime Lieutenant.

Lieutenant - Step 1

This rate shall be paid to those Members when they act as Lieutenant in an overtime position.

Battalion Chief - Step 2

Passed the exam given by the Civil Service Commission and be promoted to Battalion Chief. This rate shall be paid to those Members when they act as a daytime Battalion Chief.

Battalion Chief- Step 1

Serve as a Step 2 Battalion Chief for one year. This rate shall be paid to those Members when they act as Battalion Chief in an overtime position.

Division Chief- Step 2

Passed the exam given by the Civil Service Commission and be promoted to Division Chief. This rate shall be paid to those Members when they act as Division Chief.

Division Chief- Step 1

Serve as a Step 2 Division Chief for one year.

Education Pay

All Members of the Department shall receive, for any degree in fire science, fire service administration, emergency medical services, or master's degree from an accredited institute, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.3823
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Day Personnel	\$0.5069
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EMS Pay

Emergency Medical Technician

All Members of the Department shall receive, when they are certified as Emergency Medical Technicians/Basic by the State of Wyoming, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.5326
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Day Personnel	\$0.7062
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Paramedic

All Members of the Department shall receive, when they are certified as Paramedics by the State of Wyoming, employed by the Department, and performing paramedic duties as approved and assigned by the Department, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$2.6628
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Day Personnel	\$3.5307
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Shift Trainers

Three Emergency Medical Services Shift Trainers shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

\$1.3313

Three Fire Shift Trainers shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

\$1.3313

Specialty Pay

Hazardous Materials Technician

Up to twenty-four (including the Coordinator) Hazardous Materials Technicians shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$0.4437

Day Personnel \$0.5882

Hazardous Materials Response Coordinator

One Hazardous Materials Response Coordinator shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

Platoon Personnel \$0.6656

Day Personnel \$0.8825

Rescue Technician

Up to fifteen Rescue Technicians (including the Coordinator) shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.4437
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Day Personnel	\$0.5882
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Rescue Technician Coordinator

One Rescue Technician Coordinator shall receive, when they hold this position, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.6656
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Day Personnel	\$0.8825
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Acting Certification Pay

Members shall receive in accordance with Section 23, Working In A Higher Job Rank, that meet the certification eligibility requirements to act, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	0.4437
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Day Personnel	0.5882
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Cadre/Training Instructor

Members appointed to the position of Cadre/Training Instructor will maintain current compensation including specialty and longevity pays. Work hours will be converted to a forty-hour pay scale.

SECTION 22. OVERTIME

Division Chiefs are exempt from overtime. Overtime rates shall be paid on the following work:

- A. Holiday overtime.
- B. Ordered duty overtime and hold over overtime.
- C. Overtime work in excess of 182 hours per twenty-four-day work period.

When computing total hours in a work period, Members shall be given hour for hour credit for the following paid leave:

- A. Bereavement leave.
- B. Leave due to injury on-duty.
- C. E.O.D.
- D. Vacations.

All hours worked up to and including 182 hours in a twenty-four-day work period shall be compensated at the base rate for the classification that the Member is assigned to as defined in Section 21, Classification of Employment and Basic Wages, and will be inclusive of all regularly scheduled education, specialty, and longevity pays. All other remuneration to the Member such as pay for vacation, sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section.

All hours worked in a twenty-four-day work period in excess of 182 hours will be paid an additional one and one-half times the base rate as defined in Section 21, Classification of Employment and Basic Wages, and will be inclusive of all regularly scheduled education, specialty, and longevity pays. All other remuneration to the Member such as pay for vacation,

sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section.

Overtime shall be paid at the rate of one and one-half times the individual's base rate, and will be inclusive of all regularly scheduled education, specialty, and longevity pays, or the base rate of the position he or she is filling, and will be inclusive of all regularly scheduled education, specialty, and longevity pays, whichever is higher. All other remuneration to the Member such as pay for vacation, sick, and holidays shall not be considered as regularly scheduled pay for the purposes of this Section. All personnel shall be granted their choice of overtime pay or E.O.D. compensatory time off at the rate of one and one-half hours off for each hour worked.

If overtime work is required to cover a vacancy in any position, such work shall be offered to Department Members from a roster which includes all Members. The shift roster shall be maintained by the Union and monitored by the Fire Chief and/or their designees, and such work will be offered in as equitable a manner as possible. Any position filled pursuant to this Section shall be paid at the Member's base rate or the rate for the position he or she is filling, whichever is higher.

Overtime work on a holiday shall be paid at an additional two times the base rate for the hours that are on the holiday.

Fire prevention positions will be filled at the discretion of the Fire Chief.

Mandatory call out pay shall be two hours minimum. After the two hours minimum, one to thirty minutes shall be compensated for as one-half hour, and thirty-one to sixty minutes shall be compensated for as one hour.

The maximum accrual for E.O.D. compensatory time will be 480 hours. This maximum

accrual applies to any balance of E.O.D. compensatory time including, but not limited to, amount earned from committee work, special projects or overtime, sick leave bonus. Any E.O.D. compensatory time over 480 hours must be taken during the calendar year in which it was earned. No Member will be allowed to carry over a balance of E.O.D. compensatory time greater than 480 hours on December 31. The use of E.O.D. compensatory time cannot create an overtime situation. Members hired after July 1, 2019, shall be capped at a maximum of 240 hours of E.O.D.

When Day Personnel are working in an overtime capacity on a platoon shift, their base rate, education, specialty, EMS, acting, and longevity pays shall be converted to a 56-hour pay rate. Example: Current base rate multiplied by .754

SECTION 23. WORKING IN A HIGHER JOB RANK

- A. In the event a Member promoted above the rank of Firefighter is absent from their normally scheduled shift, a qualified Member will assume those duties for the duration of the absence. The assigned Member shall receive all regularly scheduled base, education, specialty, and longevity pays that the Member is entitled to. Members certified to act shall be paid in accordance with Section 21, "Acting Certification Pay". Members are eligible for one Acting Certification Pay regardless of the number of certifications the member obtains.
- B. When filling an absence through the acting mechanism, preference may be given to retain the acting Member at the station in which they have been assigned or chosen. Additionally, a Member's ranking on the "eligibility list" may be taken into account to provide for said Member to act more frequently. Final acting placement for daily operations will be at the discretion of the corresponding shift's battalion chief.
- C. Except in cases of overtime, the Member(s) assigned to fill said position(s) shall be from the same shift. In the event there are no Members from the same shift available to act, the absence shall be covered by a qualified Member using the overtime mechanism, with the following additional guideline:
 - a. Overtime personnel shall be utilized at their present rank first, then at a lower rank as needed.
- D. Certification eligibility:
 - a. Members previously certified or who have completed departmental training and testing shall be grandfathered.

- b. All members must complete departmental training and testing as approved by the Fire Chief.
 - c. Firefighters assigned to act in the capacity of Engineer must have completed two years of service to the Department.
 - d. Firefighters assigned to act in the capacity of Lieutenant must have completed four years of service to the Department.
 - e. Engineers assigned to act in the capacity of Lieutenant must have completed four years of service to the Department.
 - f. Lieutenants assigned to act in the capacity of Battalion Chief must have completed eight years of service to the Department.
 - g. Any Member may choose to remove themselves from the acting pool, said Member shall not receive any corresponding acting pay referenced in Section 21. If the Member chooses to reinstate their name into the acting pool, their qualifications and eligibility will be subject to review and approval of their departmental training and testing as approved by the Fire Chief. The frequency and circumstances surrounding the Member's choice to remove or reinstate themselves may be considered by the Fire Chief when reviewing and approving the Member's reinstatement.
- E. In the event a Member occupying a Day Personnel position is absent due to illness, injury, disability, or other cause and it is expected that the Member will resume the performance of the duties of the position, the Fire Chief may assign another Member to the position as an actor. If the Fire Chief chooses to assign an actor, the Fire Chief shall assign the highest ranking Member on the eligibility list for the position, established by the Civil Service Commission in its Rules and Regulations, who is willing to serve as an actor. If the eligibility list for the position has become exhausted pursuant to Chapter I, Section 3.s., of the Civil Service

Commission Rules and Regulations, the position shall be offered to Members whose names appear on a roster established to fill the position.

- F. All Members on the acting roster for Day Personnel positions shall have four years of employment with the Department and possess a Class B driver's license. In the absence of an established acting roster, the Fire Chief may assign a Member to fill the position by temporary assignment. Any Member shall be placed on or removed from a roster by notifying the Fire Chief in writing.
- G. Light duty, as defined in Section 27 of this Agreement, will not be considered working in a higher job rank.
- H. A temporary assignment, if assigned will adhere to Section 2 of this agreement, with the following conditions:
 - a. If an assigned Member's work schedule is modified, Section 24 of this agreement will be followed to convert pay and benefit hours for the duration of the assignment.
 - b. A Member shall not be converted to a lower rank or classification in the event of a temporary assignment.
 - c. The Member will continue to receive all specialty, education, longevity, acting and other pays the Member is entitled to for the duration of the assignment.

SECTION 24. CONVERSION OF BENEFIT HOURS

A. Members who move from a Platoon Personnel rank or position to a Day Personnel rank or position, and Members who move from a Day Personnel rank or position to a Platoon Personnel rank or position, pursuant to promotion, transfer, temporary assignment, or Light Duty will be subject to benefit conversion. The benefit conversion will be calculated under the following formulas:

1. Platoon to Day: Divide the number of hours worked while on Days divided by hours worked on Platoon per month. Conversion factor shall be 0.754 ($173.333/229.833$) = 0.754.

Example: A Platoon Personnel Member has accrued 200 hours times 0.754 for a total of 150.8 hours (200×0.754) = 150.8.

2. Day to Platoon: Divide the number of hours worked while on Platoon divided by hours worked on Days. Conversion factor shall be 1.325 ($229.833/173.333$) = 1.325.

Example: A Day Personnel Member has accrued 100 hours times 1.325 for a total of 132.5 hours (100×1.325) = 132.5.

B. These calculations shall apply to conversions of vacation and sick hours.

C. Members with less than thirty days in assignment shall not be covered.

SECTION 25. WELLNESS/FITNESS PROGRAM

The City agrees to provide an annual physical for all Members per National Fire Protection Association 1582 guidelines. In addition, specialty team members will receive any additional testing as required by the standard.

Furthermore, the City and the Union agree to adopt and promote the International Association of Fire Chief's International Association of Fire Fighters Peer Fitness and Wellness Program.

This benefit does not constitute a prevailing right.

SECTION 26. VACATIONS/E.O.D.

A. Annual vacations shall be determined for the period from January 1 to December 31 of each year based on the years of service completed prior to January 1 of each year.

B. All vacation time shall be accrued.

C. All rosters shall be made up prior to January 1 of each year in which the vacations are to be taken.

D. All Platoon Personnel shall choose their vacations on their respective shift, according to their seniority on the job.

E. A separate vacation roster shall be maintained for each shift.

F. A maximum of five slots may be available at any time, four vacation or E.O.D. slots and one E.O.D. only slot, except for override vacations due to transfers or approvals from the Fire Chief.

G. Vacations shall be picked by seniority of the Shift. The Senior Member shall make one pick of consecutive dates or one individual date. The next Senior Member shall make one pick of consecutive dates or one individual date. The sequence shall continue by seniority until the entire Shift has picked. The sequence shall start over by seniority and continue until all Members have selected their picks from available dates. Requests for changes to vacations or E.O.D. shall be made to the Battalion Chief of the Shift and shall be awarded on a first come first serve basis.

H. If, after sick call, there are additional openings that do not affect minimum staffing, Members may request "Day of Vacation or E.O.D." as long as the additional slots do not create overtime. Openings shall be awarded on a first come first serve basis.

I. Day Personnel shall be carried on a separate vacation roster from the Platoon Personnel, and they may split vacations.

J. During the term of this Agreement, a Member's vacation or balance thereof shall be rescheduled into available vacation slots due to promotion and demotion. If a Member is involuntarily moved, that Member retains their slot at their new assignment. In the event a Member is involuntarily moved, and a slot is vacated by any personnel in the four member group, that slot shall be considered vacated and the maximum of four Members off will take effect. In the event there are no vacation slots available, only then will a Member be allowed to carry their vacation beyond the maximum four persons off at any one time.

K. All Platoon Personnel shall be entitled to a vacation with full pay and all benefits as follows:

After successful completion of the fire academy, a pro-rated amount of 24-hour shifts at .8333 shifts per each full month of continuous service to be taken in the following year;

After one year of completed service, ten 24-hour regularly assigned tours of duty;

After five years of completed service, eleven 24-hour regularly assigned tours of duty;

After ten years of completed service, twelve 24-hour regularly assigned tours of duty;

After fifteen years of completed service, thirteen 24-hour regularly assigned tours of duty;

After twenty years of completed service, fourteen 24-hour regularly assigned tours of duty;

After twenty-five years of completed service, fifteen 24-hour regularly assigned tours of

duty;

After thirty years of completed service, sixteen 24-hour regularly assigned tours of duty.

L. All Day Personnel shall be entitled to a vacation with full pay and all benefits as follows:

After one year of completed service, 116 hours;

After five years of completed service, 140 hours;

After ten years of completed service, 164 hours;

After fifteen years of completed service, 188 hours;

After twenty years of completed service, 212 hours;

After twenty-five years of completed service, 236 hours;

After thirty years of completed service, 260 hours.

SECTION 27. SICK LEAVE

All Members of the Department shall earn accumulative sick leave at the rate of one shift for each full month completed until a maximum of sixty working shifts of sick leave have been accrued. All sick leave not in excess of sixty shifts, which has been accrued by Members of the Department at the date of this Agreement, shall be considered to be vested and shall continue in effect. At the time of separation from the Department, Members with at least four years of continuous service shall be paid fifty percent of their accrued sick leave up to a maximum of 240 hours at their regular base rate computed on 2,080 annual hours not to exceed thirty 8-hour shifts. Sick leave is hereby defined to mean absence from post of duty of a Member because of personal illness or injury of the Member. Sick leave may be used for attendance upon an immediate family member due to illness, injury, or accident up to a maximum of three sick leave shifts per year.

Sick leave shall not be considered as a privilege which a Member may use at his or her discretion but shall be allowed only in case of necessity and actual sickness or disability of the Member or immediate family member.

A. Beginning January 1, 2014, all Members who take ninety-six hours or less of sick leave for a calendar year shall be paid a cash bonus or E.O.D. compensatory time as set forth herein.

B. All Members shall be eligible for up to ninety-six hours of pay or E.O.D. compensatory time when they use less than ninety-six hours of sick leave in a calendar year. For every hour of sick leave used, the pay or E.O.D. compensatory time shall be reduced by one hour from the possible ninety-six hours. Members shall only be able to take up to forty-eight hours of

pay. All hours earned over forty-eight shall be taken as E.O.D. compensatory time.

C. If the Member takes any of the first forty-eight hours as E.O.D. compensatory time, up to forty-eight of those hours can be banked for future use. All of the hours earned above forty-eight shall be used on or before December 31 of the year in which they were awarded or they will be lost.

D. This benefit will be prorated for new Members who have been employed for more than six months but less than one year.

E. After two consecutive working shifts off-duty from illness or injury, a doctor's certificate of examination shall be required if requested by the Fire Chief covering the period of sickness or disability. In addition to the above, a Member may be required to provide a doctor's certificate of examination in the event sick leave is taken for the shift immediately preceding or following a vacation period. Any examination as ordered shall be paid for by the City. Upon presentation of satisfactory information, the Fire Chief may extend the sick leave or waive the doctor's excuse requirement. If an extension is refused, an appeal may be made to the Mayor.

F. Members may, at any time during the calendar year, donate up to one hundred twenty hours of their unused sick leave into the Department Sick Leave Bank or the City Sick Leave Bank. A maximum amount of six hundred 24-hour shifts will be accumulated in the Department Sick Leave Bank. Members will be allowed to use sick leave from the Department Sick Leave Bank only when all personal sick leave benefits have been used. Written application for the use of the Department Sick Leave Bank must be made to a Sick Leave Bank committee consisting of the Union president or his or her designee, the Fire Chief, and the Mayor or his or her designee, within ten business days prior to the date the sick leave is needed. The committee

may, at its discretion, request a doctor's certificate of examination before granting use of the Department Sick Leave Bank. Denial of a sick leave request is not subject to appeal or grievance. Members will continue to accrue benefits during the usage of sick leave from the Department Sick Leave Bank.

G. Upon separation of employment with the City, Members may donate the balance of uncompensated hours to the City Sick Leave Bank.

H. Members who are recuperating from an injury or illness may return to duty to perform work (light duty) consistent with their abilities as determined by the Member's physician. The Member shall, upon request, furnish the City with a physician's statement specifying the type of work the Member may perform. The statement shall specify medically necessary restrictions, if any. The Fire Chief shall place the Member in a position which contributes in a meaningful and identifiable way to the goals and needs of the Department.

I. Any Member who is injured in the discharge of his or her duties shall file such reports of accident disability or injury, as shall be required to secure the payment of benefits under the Wyoming Worker's Compensation Act to the injured Member. While injured, said Member shall use his or her accrued sick leave and once exhausted may use the Department Sick Leave Bank until return to duty or pension disability is received. If the Member receives temporary total disability payments under the Worker's Compensation Act, the Member shall transfer those monies to the City.

J. Claims for medical or hospital charges, drugs, and other compensable medical services shall be filed with the Worker's Compensation Division. If a Member becomes ill or disabled prior to his or her regularly scheduled vacation, the Member and Fire Chief, by mutual

agreement, shall re-schedule the vacation for said Member into available vacation slots, if possible.

K. Sick leave will be charged by the hour, one hour for every hour off. In the event that a Member returns to work after being on disability pension, said Member shall return to the rank and position he or she held previous to the disability without loss of seniority if return to work is within eighteen months.

SECTION 28. BEREAVEMENT LEAVE

In the case of death within the immediate family of any Member of the Department, such Member shall be granted leave with pay.

A Member who is assigned to a Platoon Personnel position may have three shifts of leave and a Member assigned to a Day Personnel may have four shifts of leave. Under extenuating circumstances, additional leave may be granted by the Fire Chief.

The Fire Chief may, in the exercise of discretion, grant bereavement leave upon the death of a person other than the Member's immediate family.

SECTION 29. LEAVE OF ABSENCE

Any Member of the Department may be granted a Leave of Absence without pay for a period not to exceed three months. The request for such leave shall be made in writing to the Fire Chief not less than ten days before such leave would begin, and is subject to the Fire Chief and the Mayor's approval. The Fire Chief may also place a Member on a leave of absence with pay.

No Member shall be granted a leave of absence to work in another job full time or be newly employed and receive benefits from another employer.

SECTION 30. MEDICAL, DENTAL, AND LIFE INSURANCE

Except as provided in this Section, the City shall pay the premium cost for Health, Dental, and Life Insurance under “The City Employees’ Insurance Contract,” for those Members desiring to obtain such coverage. If the City offers more than one health insurance plan to City employees, Members shall be offered the plan providing more extensive benefits. Each participant in the City health insurance program shall contribute at the same rate as other City employees. Dental insurance coverage shall be provided for the Member. Dental insurance coverage for the Member’s family is available at the Member’s expense.

A. Members shall be entitled to insure their dependents under the plans offered by the City. An eligible dependent is defined as a spouse and children up to the age of 26, whether married or unmarried. Dependent children age 26 or older may be eligible to remain insured if a physician certifies that the child cannot support himself or herself because of a disability which occurred before he or she reached the age of 26.

B. Any Member with dependent coverage may add new dependent children at any time. However, the application for coverage must be made within thirty days of the birth, placement, or adoption of the child.

C. The Union shall have the right to appoint one Member to the City Employee’s Health Insurance Committee.

The City shall offer to all Members the option of participating in a flexible health benefits plan which qualifies as a “cafeteria plan” within the meaning of Section 125 of the Internal Revenue Service Code.

Whenever any Member's yearly base salary entitles said Member to a higher amount of Life Insurance, such Life Insurance increase shall be effective July 1 of each year with a maximum of \$20,000.00.

The City shall offer Members fifty years of age or older who elect to retire the option of maintaining the current health insurance policy at the single rate. The City shall pay a maximum of \$300.00 per month toward the single coverage. The policy shall remain in effect until the Member attains the age of eligibility for Medicare or becomes eligible for coverage through another employer. Members hired after July 1, 2013, shall not be eligible for this provision.

If a Member becomes permanently disabled, as defined by the State of Wyoming Worker's Compensation Division, in the line of duty, or dies due to injury or illness incurred in the line of duty, said Member and/or his or her eligible dependents shall be offered health insurance at the expense of the City. The City shall pay for health insurance for the disabled Member. Said coverage will remain in effect until the Member and his or her eligible dependents become eligible for coverage through another employer or become eligible for Medicare. Coverage shall be equal to or exceed the health insurance available to other Members. Subject to the conditions in this Section, this coverage shall be offered the remainder of said Member's life, and to the dependents of said Member as long as they meet the qualifications of a dependent.

Eligible dependents are defined as:

- A. The spouse, as long as he or she does not remarry.
- B. Children up to the age of 26, whether married or unmarried.

C. Dependent children age 26 or older may be eligible to remain insured if a physician certifies that the child cannot support himself or herself because of a disability which occurred before he or she reached the age of 26.

The City of Cheyenne may from time to time require verification of permanent disability of Member, of employment, or of a dependent's age or disability.

SECTION 31. UNIFORMS

A. Uniform items and their compliance will be agreed upon between the Fire Chief and the Union so as to provide the best options for the Members, while being fiscally responsible and assuring for the safety of the Members.

B. The City agrees to fund uniform purchases for all Members in an amount of Five Hundred Fifty Dollars (\$550.00) per Member per year. The offered uniform items will include, but not be limited to, American National Standard Institute (ANSI) compliant work boots, station pants, long and short sleeve dress shirts, polo shirt, a tie, Job Shirt sweatshirts, sweatpants, workout shorts, coat/jacket, cotton T-shirts (blue, red and white), belts, ball cap, winter cap and formal Class A dress uniform. Additionally, flashlights can be purchased from the clothing allowance.

C. A set selection of items for new recruits will be agreed upon between the Fire Chief and the Union, or its designee. Members are responsible for the reasonable care of his or her uniforms.

D. Members shall be permitted to carry over unspent funds for the sole purpose of purchasing a dress uniform. Any unspent uniform funds will expire upon the Member's separation of employment with the Department.

SECTION 32. PERSONAL PROTECTIVE EQUIPMENT

The City will furnish and maintain for each Member serviceable structural firefighting turnout gear and equipment consisting of one pair of boots, one pair of trousers that includes liners and suspenders, one coat that includes liner, one helmet that includes liner, one pair of gloves and a flash hood, and one pair of extrication gloves, as needed. The City will provide coat lights on the truck.

The aforementioned turnout gear shall be NFPA 1971 compliant. A second set of turnout gear consisting of trouser and coat, a second pair of structural firefighting gloves, and a second protective hood shall be provided by the City to all members below the rank of Division Chief in order to reduce a Member's exposure to carcinogens after a fire. Should the Department absorb new operations, the Department and the Union will agree upon proper equipment to be issued to each Member. Members are responsible for the reasonable care of his or her equipment.

SECTION 33. UNION DUES

Upon written authorization by a Member of the Department, the City agrees, at no cost to the Union or Member, to deduct the sum certified as Union Dues, and the sum certified as PAC fund contribution, if any; and deliver the amount collected from each to the Union treasurer in their respective amounts. If a Member does not have a check coming, or the check is not large enough to satisfy the sum certified, no collection shall be made from said Member for that month.

SECTION 34. MILEAGE ALLOWANCE

If a Member has arrived at his or her assigned station, and is reassigned to duty at another station, said Member shall receive a mileage allowance consistent with City policy for that transfer and any other transfers during that shift. The mileage between stations shall be determined by the Fire Chief.

SECTION 35. RESIDENCY

Members will be required to be a resident and be domiciled within a sixty mile radius of the Cheyenne Fire Rescue Headquarters Station 1, located at 716 West 19th Street, Cheyenne, Wyoming. As used herein, a resident is defined as a person who is domiciled and physically resides within the above-described area with the present intent to remain there during the terms established above. Intent may be established by the Member's physical presence, which is ongoing, not temporary. A postal box alone is not sufficient to establish residency. Violation of this Section may be grounds for termination. Residency requirements must be met within three months of the Member's date of hire or six months within the discretion of the Fire Chief.

SECTION 36. TIME OFF FOR UNION BUSINESS

A maximum of four Members representing the bargaining agent shall be excused with pay to attend grievance hearings pursuant to Section 8, and/or the contract negotiations and labor management meetings, provided they are attended during their regular working hours.

SECTION 37. UNION USE OF CITY FACILITIES

The fire station meeting facilities shall be available for Union meetings. Attendance at such meetings by Members of the Union shall be only during off-duty hours, except for those Members who are on-duty at the station where such meeting is held may attend after 5:00 p.m. Under no circumstance shall the readiness of the Department be compromised during any meeting.

SECTION 38. ALCOHOL AND CONTROLLED SUBSTANCE POLICY

The City and the Union shall abide by the current City of Cheyenne Alcohol and Substance Policy.

SECTION 39. FAMILY AND MEDICAL LEAVE POLICY

The City and the Union shall abide by the provisions of the Family and Medical Leave Act.

SECTION 40. PREVAILING RIGHTS

Existing working conditions not specifically covered by this Agreement, but established through past practice, shall continue in full force and effect and shall not be altered during the life of this Agreement except through the mutual concurrence of the parties, except the City may properly and equitably exercise its right to make reasonable and prudent changes in operations designed to protect the City from liability or improve the service provided by the Department.

SECTION 41. SAFETY AND HEALTH

The City and the Union shall cooperate fully on all matters concerning the safety and health of Members of the Department, and the safety, proper maintenance, and repairs of Department equipment and buildings.

To ensure that these matters are taken care of in a timely manner, the Fire Chief and the Union shall meet within ten days after receiving written notification of the safety and health matter. The Fire Chief will notify and update the Mayor of the matter. If a resolution has not been agreed upon within ten days, the Union shall meet with the Mayor and the Fire Chief.

SECTION 42. LONGEVITY PAY

Each Member who has completed five years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.2796
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Day Personnel	\$0.3707
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Each Member who has completed eight years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.3962
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Day Personnel	\$0.5253
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Each Member who has completed eleven years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.5126
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Day Personnel	\$0.6796
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Each Member who has completed fourteen years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.6290
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Day Personnel	\$0.8340
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Each Member who has completed seventeen years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.7457
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Day Personnel	\$0.9887
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Each Member who has completed twenty years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$0.8621
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Day Personnel	\$1.1430
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Each Member who has completed twenty-five years of employment with the Department shall receive, in consideration of longevity, the following hourly rate in addition to their base hourly rate:

Platoon Personnel	\$1.0951
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Day Personnel	\$1.4520
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Longevity raises shall be effective the first day of the month following the Member's anniversary date of employment except for those Members who began their employment on the first day of the month.

SECTION 43. LABOR/MANAGEMENT RELATIONS

There shall be a labor/management committee consisting of up to six Union representatives and six City representatives. The committee shall meet at least quarterly to discuss all matters of mutual concern. Either party may request additional meetings in the quarter as needed. The committee shall have the authority to make recommendations to the Union and the City. Any recommendation by the committee may be rejected by the Union or the City during negotiations.

The Fire Chief and Union shall meet regularly to discuss departmental matters and continue to improve working relationships.

The 2022-2023 Collective Labor Agreement between the City of Cheyenne, Wyoming, and the Cheyenne Firefighters Local Union No. 279, International Association of Firefighters, is signed this _____ day of _____, 2022.

CITY OF CHEYENNE, WYOMING

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

CHEYENNE FIREFIGHTERS,
LOCAL UNION NO. 279, INTERNATIONAL
ASSOCIATION OF FIREFIGHTERS

Vincent McQueeney, President